

26NNCV02405 26NNCV02405

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-06-26

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Case Number: 26NNCV02405 Hearing Date: June 26, 2026 Dept: E

Case No:

26NNCV02405

Hearing Date: 06/26/2026 – 8:30 a.m.

Trial

Date: UNSET

Case

Name: RACHELLE NG v. RUSNAK

JAGUAR PASADENA; JAGUAR LAND ROVER NORTH AMERICA, LLC; and DOES 1 to 20,

Inclusive

[Tentative Ruling –

Demurrer & Motion to Strike]

RELIEF REQUESTED

Defendants – (1) Jaguar Land Rover North America, LLC and (2) Rusnak

Jaguar Pasadena – demur to the third, eighth, and ninth causes of action in

Plaintiff's Complaint.

Defendants' demurrer is made pursuant to CCP §§ 430.10(e) [failure to state facts sufficient to constitute a cause of action] and 430.10(f) [uncertainty/ambiguity/unintelligibility].

PROCEDURAL

Moving

Papers: Demurrer Notice;

Demurrer Memorandum; Declaration Bryan Roth; Proposed Order

Opposition

Papers: Opposition

Reply

Papers: Reply

Meet and Confer

A party filing a demurrer “shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP, § 430.41(a).) “The parties shall meet and confer at least five days before the date the responsive pleading is due. If the parties are not able to meet and confer at least five days prior to the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer.” (CCP, § 430.41(a)(2).)

Failure to sufficiently

meet and confer is not grounds to overrule or sustain a demurrer. (CCP, § 430.41(a)(4).)

Here, it appears that

Defendants’ counsel met and conferred. (Decl. Roth, ¶ 2-3.)

LEGAL STANDARDS FOR DEMURRERS

Demurrer – Sufficiency

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirada, (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th

1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.)

In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) “All that is required of a plaintiff, as a matter of pleading ... is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action.” (Rannard v. Lockheed Aircraft Corp. (1945) 26 Cal.2d 149, 156-157.)

On demurrer, a trial court has an independent duty to “determine whether or not the ... complaint alleges facts sufficient to state a cause of action under any legal theory.” (Das v. Bank of America, N.A. (2010) 186 Cal.App.4th 727, 734.) Demurrers do not lie as to only parts of causes of action, where some valid claim is alleged but “must dispose of an entire cause of action to be sustained.” (Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119.) “Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

Demurrer – Uncertainty

A special demurrer for uncertainty, CCP section 430.10(f), is disfavored and will only be sustained where the pleading is so

bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

TENTATIVE

RULING DEMURRER

Plaintiff,

Rachelle Ng, filed the Complaint in this action on 4/3/2026.

Plaintiff

names the following Defendants in this action: (1) Jaguar Land Rover North America, LLC (JLRNA) and (2) Rusnak Jaguar Pasadena (Rusnak).

The

following nine causes of action are alleged against all defendants:

(1) Violation of Consumer Warranty Protection Act – Civil Code Section 1793.2 et seq.;

(2) Violation of Song-Beverly Consumer Warranty Act – Civil Code § 1790 et seq.;

(3) Fraud/Deceit/Intentional Misrepresentations;

(4) Breach of Contract;

(5) Breach of Express Warranty;

(6) Breach of Implied Warranty;

(7) Violation of Consumers Legal Remedies Act – Civil Code § 1780(a);

(8) Negligence;

(9) Violation of Business Professions Code § 17200.

Both parties' papers are largely

unhelpful to the Court because they do one or more of the following: (1) Fail to address the other party's arguments; (2) Ignore what is alleged in the Complaint; (3) Cite inapposite legal authority; (4) Make arguments that are not on point; and (5) Fail to address relevant legal issues.

Plaintiff's Complaint alleges that Defendant, Rusnak Jaguar Pasadena (Rusnak), is a retail automobile dealership. (Compl., ¶ 2.)

Plaintiff does not specify what Defendant, Jaguar Land Rover North America (JLRNA), is; Plaintiff simply alleges it is a business entity. (Compl., ¶ 3.)

Despite the fact that Plaintiff referred to Rusnak as a dealership (Compl., ¶ 2.), Plaintiff alleges that on July 28, 2023, Plaintiff visited "Defendants'" automobile dealership (Compl., ¶ 14.). [The Court puts "Defendants'" in quotes to illustrate the fact that Plaintiff alleges that she visited Defendants' dealership, plural, as opposed to a singular defendant's dealership.]

In short, Plaintiff alleges that:

- (1) On July 28, 2023, she purchased a 2019 Jaguar i-Pace vehicle;
- (2) Purchased a full warranty;
- (3) Commencing around December 6, 2023, she experienced in excess of ten (10) major recurring problems with the engine, electrical system, transmission, battery system, and related issues in the vehicle;
- (4) On at least ten occasions during the time period, Plaintiff brought the vehicle back to Defendants for service and repair and each time Defendants misrepresented that they fixed the major issues; and
- (5) On about December 11, 2024, Plaintiff sent written notice to Defendants of her intent to exercise Plaintiff's rights under the Consumer Warranty Protection Act codified at Civil Code § 1792.3 et seq.

(Compl., ¶¶ 14, 16, 18, & 20.)

Defendants – (1) Jaguar Land Rover North America, LLC and (2) Rusnak Jaguar Pasadena – demur to the third, eighth, and ninth causes of action in Plaintiff's Complaint.

TENTATIVE RULING – THIRD
CAUSE OF ACTION

Plaintiff's third cause of action is labeled as a claim for "Fraud/Deceit/Intentional Misrepresentations."

Defendants' Notice of Demurrer indicates that Defendants are demurring on the grounds that "[t]he cause of action fails to state facts sufficient to constitute a cause of action as to any defendant because (a) there is no direct transactional relationship and (b) the claim is not plead with the required level of specificity." (Dem. Not., p. 2.)

Overall, the parties' arguments here are unhelpful to the Court.

The Complaint is confusing, Defendants mischaracterize allegations in the Complaint, and Plaintiff fails to address Defendants' arguments.

The Complaint's allegations with respect to the third cause of action are located within paragraphs 39-54.

The label of the third cause of action is confusing because of the fact that it labels the claim as a claim for "Fraud/Deceit/Intentional Misrepresentations."

Is this a claim for fraud based on misrepresentations, based on concealment, based on inducement?

The Court, and the parties would not know based on both the label and allegations in paragraphs 39-54.

Not only is the label confusing, but within paragraphs 39-54, Plaintiff refers to how Defendants "concealed this information" (Compl., ¶ 42), which potentially hints at the fact that Plaintiff's claim is for concealment, and Plaintiff also refers in many instances to "misrepresentations" (Compl., ¶¶ 43-44), which potentially hints at the fact that Plaintiff's claim is for

fraudulent misrepresentation.

Despite the fact that this claim could plausibly be both for fraudulent misrepresentation or fraudulent concealment, Defendants decide to only address the elements in Boschma pertaining to fraudulent concealment.

The pleading standard for fraudulent concealment appears to be as follows:

“[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Hahn v. Mirda (2007) 147 Cal.App.4th 740,748.) “Fraud must be pleaded with specificity rather than with “general and conclusory” allegations.” (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184.)

(Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 248.)

Defendants then go into a long, and somewhat confusing explanation, about how Defendants must have been under a duty to disclose, and how case law allegedly establishes that a manufacturer and a plaintiff don't have the required direct transactional relationship for there to be a duty to disclose.

Defendants then claim that there is no direct transactional relationship here between JLRNA and Plaintiff because Plaintiff admits she purchased the vehicle from Rusnak, a third party dealership.

Problematic with Defendants' argument, and problematic with the Complaint, is that the Complaint does not allege who is the manufacturer. Or to phrase it differently, Defendants assume that JLRNA is the manufacturer, but the Complaint does not allege as such.

Further, Defendants claim that Plaintiff admits she purchased the

vehicle from Rusnak, but what the Complaint actually does is allege that she purchased the vehicle from both Defendants by referring to “Defendants”, plural and possessive, automobile dealership. (Compl. ¶ 14.)

Despite Defendants’ citation to the pleading standard for fraudulent concealment, and despite primarily arguing about duty and Defendants not having a duty to disclose, Plaintiff doesn’t even attempt to address Defendants’ issues on fraudulent concealment and duty.

Instead, Plaintiff cites to the pleading standard on fraudulent misrepresentation, then Plaintiff confusingly attempts to explain how it alleged both a fraudulent misrepresentation claim and a fraudulent concealment claim even though Plaintiff only applies a singular standard [fraudulent misrepresentation] for the two claims.

The pleading standard for fraudulent misrepresentation appears to be the following:

“ ‘To establish a claim for fraudulent misrepresentation, the plaintiff must prove: “(1) the defendant represented to the plaintiff that an important fact was true; (2) that representation was false; (3) the defendant knew that the representation was false when the defendant made it, or the defendant made the representation recklessly and without regard for its truth; (4) the defendant intended that the plaintiff rely on the representation; (5) the plaintiff reasonably relied on the representation; (6) the plaintiff was harmed; and (7) the plaintiff’s reliance on the defendant’s representation was a substantial factor in causing that harm to the plaintiff.” ’ [Citation.]

(Thomas v. Regents of University of California (2023) 97 Cal.App.5th 587, 663-664.)

Fraud must be pleaded with specificity rather than with “general and conclusory allegations.” (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184.)

The specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made, and, in the case of a corporate defendant,

the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made. (Lazar v. Superior Court (1996)12 Cal.4th 631, 645.)

Despite the fact that Plaintiff's Complaint is unclear as to whether she is bringing a claim for concealment or misrepresentation, and despite the fact that the parties don't respond to each other's arguments, and despite the fact that Defendants mischaracterize the Complaint, Plaintiff's third cause of action does not state facts sufficient to constitute a cause of action for fraud under both theories, concealment or misrepresentation.

With respect to a claim for concealment, at the very least, Plaintiff does not allege the element of duty.

With respect to misrepresentation, Plaintiff does not plead the specificity requirements.

For example, Plaintiff does not plead facts showing how and by what means the representation(s) were made.

Overall, if Plaintiff wants to avoid potential problems that Defendants may bring up in the future, it would be helpful if, for each alleged misrepresentation, Plaintiff clearly labels each misrepresentation and alleges how, when, where, to whom, and by what means the misrepresentation was made, and, in the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made.

Further, aside from the defects mentioned above, Plaintiff's Complaint is somewhat confusing because ¶ 43 mentions how Defendants made misrepresentations on about December 3, 2023 that the subject vehicle was safe, free from defects, and fit for its intended purpose.

However, ¶ 47 refers to advertising materials extolling the quality of their products, and that Plaintiff viewed the advertisements/commercials on or around July 28, 2023.

How is Plaintiff alleging that the alleged misrepresentations were made on December 3, 2023, yet Plaintiff viewed the commercials/advertisements on July 28, 2023? How could Plaintiff view the commercials/advertisements on July 28, 2023 before they were made on December 3, 2023?

Is Plaintiff suing for the commercials/advertisements? Are the misrepresentations in ¶ 43 different separate from the commercials/advertisements referred to in ¶ 47?

Defendants' demurrer, for failure to state facts sufficient to constitute a cause of action, targeted at the third cause of action (fraud) is SUSTAINED WITH LEAVE TO AMEND GRANTED.

TENTATIVE RULING – EIGHTH CAUSE OF ACTION

Plaintiff's eighth cause of action is for negligence.

Defendants' notice of demurrer refers to Plaintiff's eighth cause of action as a claim for negligent repair, despite the fact that the Complaint labels it as a claim for negligence. (Dem. Not., p. 2.)

Defendants' notice of demurrer argues that "[t]he cause of action fails to state facts sufficient to constitute a cause of action as to any defendant because (a) the claim is barred by the Economic Loss Doctrine; and (b) Plaintiff has failed to plead the essential element of damages." (Dem. Not., p. 2.)

Further, Defendants' memorandum argues that Plaintiff's eighth cause of action solely pleads conclusions and does not plead facts identifying which defendants were negligent, what was the alleged negligence, what repairs were negligently performed, and what negligent act caused injury.

Defendants' memorandum also argues that Plaintiff's claim is barred by the economic loss rule.

Plaintiff's Complaint

alleges:

86.

Plaintiff incorporates herein by reference all the allegations set forth in paragraphs 1 through 85, inclusive, in their entirety as if fully set forth herein and with the same force and effect.

87. Plaintiff is informed and

believes, and hereon alleges, that she was furthered injured due to negligent acts or omissions by agents, representatives or employees of defendants, and each of them.

88.

Plaintiff is informed and believes, and hereon alleges, that at all relevant times defendants, and each of them, owed Plaintiff a legal duty and/or duties. Plaintiff is further informed and believes that defendants, and each of them, breached said duty and/or duties.

89. As a

direct and proximate result of the negligence of the defendants, and each of them, Plaintiff was seriously injured in health, strength and activity, sustaining injury to the body and shock and injury to the nervous system and person, all of which said injuries have caused, and continue to cause Plaintiff great physical, mental and nervous pain, suffering and anguish, all to Plaintiff's general damage in a sum in excess of the minimal jurisdictional requirements of this Court to be determined at some future date, according to law. Accordingly, Plaintiff will also seek prejudgment interest for all such damages.

90. As a

further direct and proximate result of the negligence of the defendants, and each of them, Plaintiff was required to, and did, employ physicians, surgeons and other health care practitioners to examine, treat and care for Plaintiff, and did incur medical and incidental expenses. The exact amount of such expenses are unknown to Plaintiff at this time, and Plaintiff will ask leave to amend this Complaint to set forth the exact amount thereof when the same is ascertained.

91. As a

further direct and proximate result of the negligence of the defendants, and each of them, Plaintiff sustained loss of earnings and earning capacity. The exact amount of such loss is unknown to Plaintiff at this time, and Plaintiff will ask leave to amend this Complaint to set forth the exact amount thereof when the same is ascertained.

(Compl., ¶¶ 86-91.)

Here, Plaintiff did not state facts sufficient to constitute a cause of action for the eighth cause of action for negligence.

“An action in negligence requires a showing that the defendant owed the plaintiff a legal duty, that the defendant breached the duty, and that the breach was a proximate or legal cause of injuries suffered by the plaintiff.” (Ann M. v. Pacific Plaza Shopping Center (1993) 6 Cal.4th 666, 673 citing United States Liab. Ins. Co. v. Haidinger-Hayes, Inc. (1970) 1 Cal.3d 586, 594.)

The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.)

Here, Plaintiff’s negligence claim simply pleads conclusions of law, and Plaintiff does not plead any facts.

For example, paragraph 88 of Plaintiff’s negligence claim alleges that defendants owed Plaintiff a legal duty and/or duties. (Compl., ¶ 88.)

A duty of what?

A duty of care to avoid causing harm to others? A fiduciary duty?

Plaintiff’s opposition argues that ¶ 88 states that Plaintiff is owed a duty not to sell Plaintiff a defectively manufactured product; however, that is not alleged in the Complaint.

[The Court notes that it is unclear why Plaintiff’s opposition argues that Plaintiff is owed a duty to not sell Plaintiff a defectively manufactured product, yet the alleged injury in the Complaint is injury to health, strength, nervous system, etc.]

“While negligence is ordinarily a question of fact, the existence of a duty is generally a question of law that may be addressed by demurrer.” (Paul v. Patton (2015) 235 Cal.App.4th 1088, 1095.)

“It is well established that “the existence and scope of a duty are questions of law, while breach, causation, and injury are fact-specific issues for the trier of fact.”” (Achay v. Huntington Beach Union High School Dist. (2002) 80 Cal.App.5th 528, 535 citing Staats v. Vintner’s Golf Club, LLC (2018) 25 Cal.App.5th 826, 837.)

Here, Plaintiff does not allege duty; Plaintiff’s Complaint alleges a conclusion of law that “defendants, and each of them, owed Plaintiff a legal duty and/or duties.” (Compl, ¶ 88.)

Further, Plaintiff does not allege facts pertaining to breach because Plaintiff simply alleges “that defendants, and each of them, breached said duty and/or duties.” (Compl., ¶ 88.)

It is entirely unclear how Defendants breached their duty, whatever that duty is.

Further, in the ordinary personal injury lawsuit, in which the complaint’s factual recitations show plainly the connection between cause and effect, it suffices to plead causation succinctly and generally. (Bockrath v. Aldrich Chemical Co., Inc. (1999) 21 Cal.4th 71, 78 citing Rannard v. Lockheed Aircraft Corp. (1945) 26 Cal.2d 149, 155-156.)

But when, by contrast, “the pleaded facts of negligence and injury do not naturally give rise to an inference of causation[,] the plaintiff must plead specific facts affording an inference the one caused the others.” ((Bockrath v. Aldrich Chemical Co., Inc. (1999) 21 Cal.4th 71, 78 quoting Christensen v. Superior Court (1991) 54 Cal.3d 868, 900-901.)

Here,
Plaintiff’s pleaded facts of negligence and injury do not naturally give rise to an inference of causation. The negligence claim doesn’t state what the alleged negligence is; therefore, it is unclear how the injury [allegedly pertaining to health and physical/mental/nervous pain] gives rise to an inference of causation.

The Court

will not address the economic loss rule because Plaintiff does not sufficiently plead negligence.

Defendants'

demurrer to the eighth cause of action (negligence), based on failure to state facts sufficient to constitute a cause of action, is SUSTAINED WITH LEAVE TO AMEND GRANTED.

TENTATIVE RULING – NINTH CAUSE OF ACTION

Plaintiff's ninth cause of action is labeled

as a claim for "Violation of Business Professions Code § 17200" in the caption of the Complaint; however, the body of the Complaint labels the ninth cause of action as a claim for "Injunctive Relief Pursuant to Business and Professions Code § 17200."

Plaintiff's Complaint alleges:

92. Plaintiff expressly incorporates preceding paragraphs 1 through 91 as though set forth fully herein.

93. Defendants, and each of them, have committed unfair and deceptive acts and practices as defined by the Consumer Legal Remedies Act, as well as acts of unfair competition as defined by Business and Professions Code §17200 by their conduct as alleged herein.

94. Defendants, and each of them, by their above referenced conduct, have engaged in unlawful, fraudulent and deceptive business practices with respect to the Plaintiff. Such misconduct by defendants, constitutes a violation of the Consumer Legal Remedies Act, California Civil Code §1632 and other statutes and Codes, as set forth herein, because it constitutes material misrepresentation, through concealment, of the quality and nature of a consumer goods and constitutes a violation of at least those subdivisions of the Consumer Legal Remedies Act referenced in the first cause of action, in addition to other subdivisions and a violation of the Civil Code.

95. As a result of the acts of defendants, and each of them,

Plaintiff has lost the use of moneys paid for the subject VEHICLE, and has suffered embarrassment at having been defrauded by the Defendants. In addition, Plaintiff has suffered other damages as will be proved at the time of trial of this matter.

96. Plaintiff is informed and believes and hereby alleges that the unlawful, unfair or fraudulent practices alleged above are continuing in nature and are widespread practices engaged in by Defendants, and each of them.

97. On behalf of the general public, Plaintiff respectfully requests that a permanent injunction against defendants, and each of them, be issued to enjoin them from continuing to engage in the unlawful, unfair or fraudulent conduct alleged herein.

(Compl. ¶¶ 92-97.)

Defendants' notice of demurrer states that "Plaintiff's UCL claim fails as a matter of law because it does not state a claim, Plaintiff lacks standing or injury, no injunctive or restitutionary relief is available, and Plaintiff has an adequate remedy under the Song-Beverly Act." (Dem. Not., p. 2.)

Defendants argue that Plaintiff's ninth cause of action does not state facts with reasonable particularity because the Complaint doesn't identify a particular misrepresentation or describe a specific business practice challenged.

Defendants' arguments appear to be unavailing.

The purpose of the UCL "is to protect both consumers and competitors by promoting fair competition in commercial markets for goods and services." (Drum v. San Fernando Valley Bar Assn. (2010) 182 Cal.App.4th 247, 252 citing Kasky v. Nike, Inc. (2002) 27 Cal.4th 939, 949.) Business and Professions Code section 17200 provides: "[a]s used in this chapter, unfair competition shall mean and include any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising and any act prohibited by Chapter 1 (commencing with Section 17500) of Part 3 of Division 7 of the Business and

Professions Code.” (Progressive West Ins. Co. v. Superior Court (2005) 135 Cal.App.4th 263, 284.) Because the UCL is written in the disjunctive, it establishes three varieties of unfair competition – acts or practices which are unlawful, or unfair, or fraudulent. (Adhav v. Midway Rent a Car, Inc. (2019) 37 Cal.App.5th 954, 970 citing Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 180.)

Unlawful

“ ‘The “unlawful” practices prohibited by ... section 17200 are any practices forbidden by law, be it civil or criminal, federal, state, or municipal, statutory, regulatory, or court-made. [Citation.] It is not necessary that the predicate law provide for private civil enforcement. [Citation.] As our Supreme Court put it, section 17200 “borrows” violations of other laws and treats them as unlawful practices independently actionable under section 17200 et seq.” (South Bay Chevrolet v. General Motors Acceptance Corp. (1999) 72 Cal.App.4th 861, 880 citing Hewlett v. Squaw Valley Ski Corp. (1997) 54 Cal.App.4th 499, 531-532.) “A plaintiff alleging unfair business practices under these statutes must state with reasonable particularity the facts supporting the statutory elements of the violation.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 619; “Demurrer was properly sustained as to this cause of action because the second amended complaint identifies no particular section of the statutory scheme which was violated and fails to describe with any reasonable particularity the facts supporting violation.” (Id.).)

Here, Plaintiff’s Complaint incorporated the previous allegations in the Complaint.

Since 17200 borrows violations of other laws, it appears that at the very least as if Plaintiff’s first and second causes of action can form a basis for Plaintiff’s ninth cause of action. Defendants did not demur to the first and second cause of action.

Therefore, Plaintiff appears to state a claim under the UCL.

Unfair

There is authority that the

test to determine whether a business practice is unfair differs depending on whether the plaintiff in a UCL case is a competitor of the defendant or a consumer. (Drum v. San Fernando Valley Bar Assn. (2010) 182 Cal.App.4th 247, 253.) In competitor cases, a business practice is “unfair” only if it “threatens an incipient violation of an antitrust law, or violates the policy or spirit of one of those laws because its effects are comparable to or the same as a violation of the law, or otherwise significantly threatens of harms competition.” (Id. citing Cel-Tech, supra, 20 Cal.4th at 187.)

In consumer cases, the Supreme Court has not established a definitive test to determine whether a business practice is unfair. (Drum v. San Fernando Valley Bar Assn., supra, 182 Cal.App.4th at 246 citing Cel-Tech, supra, 20 Cal.4th at 187, fn. 12.)

Several definitions of “unfair” under the UCL have been formulated, and they are:

1. “An act or practice is unfair if the consumer injury is substantial, is not outweighed by any countervailing benefits to consumers or to competition, and is not an injury the consumers themselves could reasonably have avoided.” (Daugherty v. American Honda Motor Co., Inc. (2006) 144 Cal.App.4th 824, 839.)

2. “[A]n “unfair business practice occurs when that practice “offends an established public policy or when the practice is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers.” [Citation.]’ [Citation.]” (Smith v. State Farm Mutual Automobile Ins. Co. (2001) 93 Cal.App.4th 700, 719.)

3. An unfair business practice means the “ ‘the public policy which is a predicate to the action must be “tethered” to specific constitutional, statutory or regulatory provisions.’” (Scripps Clinic v. Superior Court (2003) 108 Cal.App.4th 917, 940.)

(West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 806.)

“The balancing test required by the unfair business practice prong of section 17200 is fact intensive and is not conducive to resolution at the

demurrer stage. '[U]nfairness' is an equitable concept that cannot be mechanistically determined under the relatively rigid legal rules applicable to the sustaining or overruling of a demurrer." (Progressive West Ins. Co. v. Superior Court (2005) 135 Cal.App.4th 263, 287 citing Schnall v. Hertz Corp. (2000) 78 Cal.App.4th 1144, 1167.)

Fraudulent

"A fraudulent business practice under section 17200 'is not based upon proof of the common law tort of deceit or deception, but is instead premised on whether the public is likely to be deceived.'" (Progressive West Ins. Co. v. Superior Court (2005) 135 Cal.App.4th 263, 284 citing Pastoria v. Nationwide Ins. (2003) 112 Cal.App.4th 1490, 1498.) Stated another way, "In order to state a cause of action under the fraud prong of [section 17200] a plaintiff need not show that he or others were actually deceived or confused by the conduct or business practice in question. 'The "fraud" prong of [section 17200] is unlike common law fraud or deception. A violation can be shown even if no one was actually deceived, relied upon the fraudulent practice, or sustained any damage. Instead, it is only necessary to show that members of the public are likely to be deceived.' [Citations.]" (Progressive West Ins. Co., supra, 135 Cal.App.4th at 284 citing Schnall v. Hertz Corp. (2000) 78 Cal.App.4th 1144, 1167.)

With respect to fraud, although Plaintiff's Complaint does not allege a cause of action for fraud, the UCL's fraudulent prong is not based on the common law tort of deceit, but whether the public is likely to be deceived.

Plaintiff does not allege the public is likely to be deceived, but it appears that Plaintiff alleges a UCL claim under the unlawful prong.

Defendant also argues that Plaintiff does not allege injury in fact because the pleading requires economic injury and causation; however, Defendants' argument appears unavailing because the Complaint alleges that as a result of the acts of defendants, Plaintiff has lost the use of money paid for the subject vehicle. (See Compl. ¶ 95.)

Defendants also argue that Plaintiff's

only available UCL remedies are injunctive relief and restitution. Defendants argue Plaintiff cannot obtain either because for injunctive relief, a plaintiff must show future harm and Plaintiff here cannot show she intends to purchase another vehicle. Further, Defendants argue that Plaintiff did not plead facts showing restitution because she did not plead facts showing she conferred a benefit on Defendants.

Here, the Court fails to understand Defendants' arguments because Plaintiff alleges she paid money for the vehicle.

The Court is inclined to OVERRULE Defendants' demurrer to the ninth cause of action; however, the Court will hear argument in case Plaintiff wants leave to amend to more specifically allege the elements of this claim.

MOTION TO STRIKE

RELIEF REQUESTED

Defendants – (1) Jaguar Land Rover North America, LLC and (2) Rusnak Jaguar Pasadena – move to strike:

1. Prayer for Relief, Page 22, line 22 and Page 24, line 8 that state "For punitive and exemplary damages."

(Mot. Not., p. 1.)

Defendants move pursuant to CCP § 435 on the grounds that the Complaint fails to plead sufficient facts to award punitive damages pursuant to Civil Code § 3294(a),(b) and (c).

PROCEDURAL

Moving

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Notice; Motion Strike Memorandum; Declaration Bryan Roth; Proposed Order

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LEGAL

STANDARD – MOTION TO STRIKE

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP, § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (CCP, § 436(b).)

A motion

to strike cannot be based upon the grounds that a complaint fails to state facts sufficient to constitute a cause of action, but instead is properly based on grounds of superfluous or abusive allegations, or improprieties in form or procedure. (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528-29.)

The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP, § 437; *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63 [“judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth”].)

Further, CCP § 431.10(a)-(c) states as follows:

(a) A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.

(b) An immaterial allegation in a pleading is any of the following:

(1) An allegation that is not essential to the statement of a claim or defense.

(2) An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense.

(3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

(c) An “immaterial allegation” means “irrelevant matter” as that term is used in Section 436.

(CCP, § 431.10(a)-(c).)

TENTATIVE RULING MOTION TO STRIKE

Defendants

seek to strike Page 22, line 22 in the Prayer for Relief. This page and line coincides with the request for punitive and exemplary damages in the prayer for relief with respect to the third cause of action for fraud.

Defendants

also seek to strike Page 24, line 8 in the Prayer for Relief. This page and line coincides with the request for punitive and exemplary damages in the prayer for relief with respect to the seventh cause of action for Violation of Consumer Legal Remedies Act – Civil Code § 17800(a).

In

an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example by way of punishing the defendant. (Civil Code, § 3294(a).)

“‘Malice’

means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code, § 3294(c)(1).)

“‘Oppression’

means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. (Civil Code, § 3294(c)(2).)

“‘Fraud’

means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury. (Civil Code, § 3294(c)(3).)

Under Civil Code § 3294(b):

An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.

(Civ. Code, § 3294(b).)

Defendants argue that Plaintiff does not plead malice, oppression, or fraud.

With respect to Defendants seeking to strike Page 22, line 22 in the Prayer for Relief, Defendants' motion to strike is GRANTED with leave to amend GRANTED because this request for punitive damages pertains to the third cause of action for fraud, and Plaintiff did not state facts sufficient to state a claim for fraud.

Defendants also seek to strike Page 24, line 8 in the Prayer for Relief. This page and line coincides with the request for punitive and exemplary damages in the prayer for relief with respect to the seventh cause of action for Violation of Consumer Legal Remedies Act – Civil Code § 17800(a).

With respect to Page 24, line 8, Defendants provide no arguments about the striking punitive damages in the seventh cause of action for Violation of Consumer Legal Remedies Act – Civil Code § 17800(a). Further, Defendants did not demur to this

cause of action. Additionally, Plaintiff provided no argument on this cause of action, likely because Defendants completely failed to address this request. The Court to hear argument on striking Page 24, line 8.